Students Complaint and Grievance Policy and Procedure

1. Purpose

This Policy establishes an accessible, timely, impartial and transparent framework for handling student complaints, grievances and appeals about academic and non-academic matters. It safeguards procedural fairness, supports student wellbeing and enables TIIS to identify and address systemic deficiencies.

2. Scope

This Policy applies to current, prospective and former TIIS students, domestic and international, onshore and offshore, to the extent a matter concerns TIIS services, decisions or conduct. It covers relevant actions of TIIS staff, education agents, third-party delivery partners and contractors. It includes academic administration, enrolment, progression, fees, refunds, student support, discrimination and administrative decisions.

Allegations of sexual assault or sexual harassment must be managed under the specialist TIIS policy and associated safety procedures, with access to appropriate complaints and review mechanisms preserved. Matters within another specialist policy may follow that policy's substantive criteria while retaining the procedural protections of this Policy.

3. Regulatory framework

- Education Services for Overseas Students Act 2000 (Cth) and National Code of Practice for Providers of Education and Training to Overseas Students 2018, especially Standard 10 and, as relevant, Standards 7, 8 and 9.
- Higher Education Standards Framework (Threshold Standards) 2021, including requirements for student grievance handling and institutional accountability.
- Applicable privacy, anti-discrimination and consumer laws; TIIS Constitution, Governance Charter and Delegations of Authority.
- National Student Ombudsman external complaints arrangements applying to higher education students since 1 February 2025.

4. Definitions

Complaint / grievance	Expression of dissatisfaction concerning a TIIS decision, act, omission, service or conduct requiring a response.
Internal appeal	Formal request for reconsideration of a complaint outcome or reviewable decision by a person or panel independent of the original decision.
External complaint / appeal	Independent consideration by a body outside TIIS with jurisdiction over the matter.
Working day	A day other than a Saturday, Sunday or public holiday in the relevant TIIS campus jurisdiction.
Procedural fairness	Opportunity to be heard, impartial consideration, decisions based on relevant evidence and provision of reasons.
Support person	Person chosen by a student to accompany or assist them, subject to reasonable procedural requirements.
Overseas student	Student to whom the ESOS framework applies.

5. Policy principles

TIIS is committed to ensuring that all student complaints, grievances and appeals are managed fairly, consistently, transparently and in accordance with applicable regulatory requirements. The following principles guide the handling and resolution of complaints and appeals:

(a) **Accessibility:** Complaints and appeals procedures are published, readily accessible, free to use and easy to understand, with reasonable assistance and accessibility adjustments available to students.

(b) **Fairness and Independence:** Complaints and appeals are considered impartially by appropriately authorised persons who were not involved in the original decision. Actual and perceived conflicts of interest must be identified and appropriately managed.

(c) **Natural Justice:** Students are given a reasonable opportunity to present evidence, respond to relevant adverse information and be accompanied or assisted by a support person at relevant meetings.

(d) **Confidentiality and Non-Retaliation:** Complaints and appeals are handled confidentially, with information disclosed only where reasonably necessary or legally required. Students must not be disadvantaged or subjected to retaliation for raising concerns in good faith.

(e) **Timeliness and Transparency:** Complaints and appeals are acknowledged, investigated and determined within established timeframes wherever practicable. Students are informed of progress, decisions, reasons and any unavoidable delays.

(f) **Remedy and Continuous Improvement:** Decisions and remedies are implemented promptly, particularly where outcomes favour students. TIIS uses complaint and appeal findings to identify systemic issues, strengthen institutional practices and prevent recurrence.

6. Responsibilities

Effective management of student complaints and appeals requires clearly defined responsibilities, appropriate independence in decision-making and accountability across TIIS's governance and management structures. The following responsibilities apply in accordance with the TIIS Constitution, Governance Charter and Delegations of Authority.

Responsible Body / Officer	Key Responsibilities
Board of Directors	Provides institutional governance oversight, monitors significant systemic risks and exercises approval authority where reserved under the Delegations of Authority.
Academic Board	Oversees academic quality and standards, monitors academic complaints and appeals trends, and addresses academic matters within its delegated authority. It does not automatically exercise jurisdiction over non-academic appeals.
CEO / Executive Management Team	Ensures adequate resources, effective implementation and management oversight of complaints and appeals processes, including escalation and management of significant institutional risks.
Registrar	Acts as the Policy Owner and oversees complaint and appeal administration, procedural compliance, secure recordkeeping, case management, implementation monitoring and reporting.
Student Services / Program Coordinators	Provide initial guidance and assistance to students, facilitate informal resolution where appropriate, coordinate referrals and communications, and ensure access to relevant student support services.
Investigating Officer	Conducts impartial investigations, gathers and assesses relevant evidence, ensures procedural fairness and provides documented findings and recommendations.
Appeals Panel	Undertakes independent reviews of appealable decisions, considers relevant evidence and procedural fairness, and makes reasoned determinations within its delegated authority.
Relevant Functional Owner	Implements approved remedies, corrective and preventive actions promptly, maintains supporting evidence and reports completion to the Registrar.

All responsible bodies and officers must cooperate in the timely resolution of complaints and appeals, maintain appropriate confidentiality and ensure that decisions are made within their authorised responsibilities.

7. Complaints and Appeals

TIIS is committed to providing all students with a fair, accessible, impartial, confidential and transparent process for resolving academic and non-academic complaints and appeals.

Students may raise concerns in good faith without fear of discrimination, victimisation, retaliation or disadvantage. TIIS will apply procedural fairness, protect confidentiality and provide appropriate assistance throughout the process.

The complaints and appeals process comprises four stages:

1. **Stage 1 – Informal Resolution**
2. **Stage 2 – Formal Complaint**
3. **Stage 3 – Internal Appeal**
4. **Stage 4 – External Complaint or Appeal**

Students are encouraged to seek informal resolution where appropriate. However, informal resolution is not a prerequisite where it would be inappropriate, unsafe or ineffective.

7.1 Stage 1 – Informal Resolution

Students are encouraged to raise concerns directly with the relevant staff member or Student Services, preferably within 10 working days of the issue arising.

TIIS will endeavour to resolve concerns promptly through discussion, clarification, mediation or other appropriate measures.

Where the matter cannot be resolved informally, or where informal resolution is inappropriate, students may proceed directly to the formal complaints process.

7.2 Stage 2 – Formal Complaint

7.2.1 Submission

Students may lodge a formal complaint by submitting a Student Complaint and Grievance Form or a written complaint to the Registrar or designated Student Services Officer.

The complaint should identify:

- The nature and circumstances of the complaint;
- The outcome or remedy sought; and
- Relevant supporting information or evidence.

TIIS will assist students experiencing language, literacy, disability, accessibility or other barriers. Failure to use a particular form must not unreasonably prevent a complaint from being considered.

7.2.2 Acknowledgement and Allocation

TIIS will:

- Acknowledge receipt of the formal complaint within five working days;

- Commence assessment within 10 working days of formal lodgement; and
- Appoint an impartial Investigating Officer who has not been materially involved in the matter and has no unmanaged conflict of interest.

7.2.3 Investigation

The Investigating Officer will:

- Identify the relevant facts, policies and applicable requirements;
- Review supporting documents and conduct interviews where appropriate;
- Provide the student with a reasonable opportunity to present their case at minimal or no cost;
- Permit the student to be accompanied or assisted by a support person at relevant meetings;
- Apply procedural fairness to all affected parties; and
- Document material findings, evidence and reasons.

7.2.4 Decision and Notification

TIIS aims to provide a written complaint outcome within 20 working days of receipt.

Where additional time is reasonably required, TIIS will advise the student of the reason for the delay, the revised anticipated completion date and any necessary interim arrangements.

The written outcome must include:

- The decision and material reasons;
- Any remedy or corrective action;
- Relevant implementation arrangements; and
- The student's right to seek an internal appeal.

7.3 Stage 3 – Internal Appeal

7.3.1 Right to Appeal

A student dissatisfied with a formal complaint outcome may lodge a written internal appeal within 10 working days of receiving the decision.

Appeals are directed as follows:

- Academic matters: To the Chair of the Academic Board.
- Non-academic matters: To the Registrar for allocation to an appropriately authorised independent reviewer.

Late appeals may be accepted where reasonable circumstances justify the delay. Any applicable specialist policy or mandatory statutory timeframe takes precedence where it provides a longer or otherwise prescribed appeal opportunity.

7.3.2 Independent Appeals Panel

An Appeals Panel comprising at least two appropriately qualified senior academic and/or professional staff will be appointed.

Panel members must:

- Have no material involvement in the original decision;
- Have no unmanaged conflicts of interest; and
- Possess the expertise required to review the matter.

Academic appeals may be considered through the relevant academic governance arrangements, while non-academic appeals will be managed under the appropriate executive delegation.

Where the usual appointing officer has a conflict of interest, an independent authorised alternative will appoint the Panel.

7.3.3 Review and Determination

The Appeals Panel will examine the original decision, grounds of appeal, supporting material and compliance with procedural fairness.

The Panel may:

- Uphold the original decision;
- Vary the decision;
- Set aside the decision; or
- Refer the matter for reconsideration.

TIIS aims to issue a written appeal determination within 15 working days, where practicable. Any justified delay must be explained to the student.

7.3.4 Notification of Appeal Outcome

The written notification must identify:

- Whether the appeal was successful, partially successful or unsuccessful;
- The reasons for the determination;
- Any required action and expected implementation timeframe; and
- Where applicable, the student's right to access an independent external complaints or appeals process.

For overseas students whose internal appeal is unsuccessful, TIIS will provide advice about the external review process and relevant contact details within 10 working days of concluding the internal review.

7.4 Stage 4 – External Complaints and Appeals

7.4.1 Access to External Review

Students who remain dissatisfied after completing the internal process may seek independent external review.

TIIS will provide information about an appropriate external complaints process available at minimal or no cost.

Students may also contact external authorities independently, including where circumstances justify doing so before the internal process has concluded.

TIIS will cooperate with authorised external investigations and provide records where lawfully required.

7.4.2 National Student Ombudsman

The National Student Ombudsman (NSO) is the principal independent external complaints body for students enrolled in TIIS higher education courses, including domestic and overseas students.

The NSO commenced operations on 1 February 2025 and may consider complaints within its statutory jurisdiction concerning higher education providers, including relevant administrative decisions, service delivery, complaints handling and procedural fairness.

The NSO generally does not replace an academic decision-maker's academic judgement with its own.

Contact details

National Student Ombudsman
Website: www.nso.gov.au
Complaints: www.nso.gov.au/complaints
Telephone: 1300 395 775

7.4.3 Other External Authorities

Other bodies may have jurisdiction depending on the nature of the complaint.

The Commonwealth Ombudsman's Overseas Students Ombudsman function may be relevant to eligible international education complaints outside the higher education sector.

TEQSA receives higher education regulatory concerns but does not ordinarily act as an individual merits appeal body.

Specialist regulators, courts or tribunals may also have jurisdiction in particular circumstances.

TIIS will provide students with referrals appropriate to the nature of their concerns.

8. Student Rights and Enrolment Protection

8.1 Student Rights and Support

Throughout the complaints and appeals process, students have the right to:

- Fair, impartial and procedurally appropriate consideration of their concerns;
- Free internal complaints and appeals processes;
- Assistance from Student Services;
- A support person at relevant meetings;

- Reasonable accessibility and language-related assistance;
- Confidential handling of personal information, subject to lawful disclosure requirements; and
- Protection against victimisation or retaliation for raising concerns in good faith.

Students may also seek independent advocacy or legal advice.

8.2 Protection of Overseas Student Enrolment

TIIS will maintain overseas student enrolment during internal complaints and appeals where required by applicable legislation.

In particular, TIIS will:

- Apply the relevant internal and external appeal protections before reporting unsatisfactory course progress or attendance under National Code Standard 8;
- Ordinarily defer provider-initiated suspension or cancellation until the internal appeal process has been completed, subject to applicable statutory exceptions under Standard 9; and
- Manage transfer refusals in accordance with the appeal and PRISMS requirements of Standard 7.

During external complaints or appeals, TIIS will ordinarily maintain enrolment where lawful and practicable, unless an authorised and documented decision identifies a legal requirement or compelling reason otherwise.

The student will be notified in writing of any such decision and the reasons.

Maintaining enrolment does not necessarily entitle a student to continue attending classes in every circumstance.

8.3 Student Visa Considerations

Where a complaint or appeal may affect a student's visa status, TIIS will advise the student to contact the Australian Department of Home Affairs or seek advice from a registered migration agent or other authorised adviser.

Department of Home Affairs: https://immi.homeaffairs.gov.au
Telephone: 131 881

TIIS does not determine visa eligibility or visa outcomes.

9. Implementation of Complaint and Appeal Outcomes

Where an internal or external complaint or appeal results in a decision or recommendation in favour of an overseas student, TIIS will immediately implement the decision or recommendation and/or the required preventive or corrective action, and advise the student of the action taken, in accordance with National Code Standard 10.4.

For other students, TIIS will implement outcomes promptly under its institutional procedures.

The responsible officer must document:

- The decision or recommendation;
- Required actions;
- Assigned responsibilities;
- Implementation deadlines;
- Evidence of completion; and
- Any necessary corrections to student records.

10. Records Management, Privacy and Confidentiality

The Registrar will maintain a secure Complaints, Grievances and Appeals Register.

The Register must record, as applicable:

- Unique case identifier and relevant dates;
- Student category and nature of the matter;
- Applicable policy and responsible decision-maker;
- Conflict-of-interest checks;
- Supporting evidence and communications;
- Decisions, reasons and outcomes;
- External referrals;
- Enrolment protection considerations; and
- Corrective and preventive actions.

Formal complaint and appeal records will be retained for at least five years, or longer where required by legislation, litigation holds or TIIS records requirements.

Access will be restricted to authorised personnel.

Governance reporting must protect student confidentiality while identifying material trends, delays, recurring issues and systemic risks.

11. Communication, Accessibility and Student Awareness

TIIS will make this Policy and relevant complaint, and appeal forms available through its website and learning management system.

Information about the complaints and appeals process will also be communicated through student orientation and the Student Handbook.

Students may request assistance relating to language, literacy, disability or other accessibility needs.

TIIS prohibits victimisation arising from good-faith complaints and will promptly address alleged retaliation.

12. Monitoring, Governance Oversight and Continuous Improvement

The Registrar is responsible for monitoring:

- Complaint and appeal volumes;
- Compliance with prescribed institutional timeframes;
- Outcomes and recurring issues;
- Delays and unresolved matters; and
- Completion of corrective and preventive actions.

Academic trends will be reported to the Academic Board.

Material operational, compliance or regulatory risks will be escalated to the CEO, Executive Management Team, Audit and Risk Committee and/or Board of Directors, as appropriate.

Findings from complaints and appeals will inform institutional risk management, policy review, staff training and continuous improvement.

This Policy will be reviewed at least biennially and earlier following material legislative changes, audit findings or significant complaints trends.

13. Related Legislation and Authoritative Resources

- National Code of Practice for Providers of Education and Training to Overseas Students 2018: https://www.legislation.gov.au/F2017L01182/latest/text
- Department of Education – National Code Standard 10, Complaints and Appeals: https://www.education.gov.au/esos-framework/resources/standard-10-complaints-and-appeals
- National Student Ombudsman: https://www.nso.gov.au/
- Department of Home Affairs: https://immi.homeaffairs.gov.au

14. Version History

Version	Approved by	Status	Date	Details
1.0	Board of Directors	Approved	10 March 2016	Initial approval of the policy.
1.1	Board of Directors	Approved	3 August 2017	Minor changes.
1.2	Executive Management Committee	Approved	14 October 2020	Minor changes.
2.0	Executive Management Committee	Approved	29 May 2026	Policy review and update.

3.0	Executive Management Committee	Approved	22 October 2026	Comprehensive revision incorporating the National Student Ombudsman, strengthened complaints and appeals procedures, enrolment protections, procedural fairness, recordkeeping and governance oversight.
3.1	Executive Management Committee	Approved	26 October 2026	Rectification following the independent review; alignment with the Student Handbook and Letter of Offer and Written Agreement.